

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                                            |                                                       |                                               |                                 |
|--------------------------------------------------|-------------------------------------|--------------------------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Kobi Bordoley                   | Team:<br>Squad #3                   | CCRB Case #:<br>201706503                  | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                                            | <input checked="" type="checkbox"/> Abuse             | <input checked="" type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 08/01/2017 6:30 PM  | Location of Incident:<br>§ 87(2)(b) | Precinct:<br>52                            | 18 Mo. SOL<br>2/1/2019                                | EO SOL<br>2/1/2019                            |                                 |
| Date/Time CV Reported<br>Sun, 08/06/2017 6:24 PM | CV Reported At:<br>CCRB             | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Sun, 08/06/2017 6:24 PM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. SGT Frank Aliffi | 00234  | 939856 | 052 PCT |

| Witness Officer(s)   | Shield No | Tax No | Cmd Name |
|----------------------|-----------|--------|----------|
| 1. POM Kevin Hickey  | 17829     | 958695 | 052 PCT  |
| 2. POM Nasser Suddah | 07227     | 959276 | 052 PCT  |

| Officer(s)         | Allegation                                                                                                               | Investigator Recommendation |
|--------------------|--------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A.SGT Frank Aliffi | Abuse: Sergeant Frank Aliffi threatened to arrest § 87(2)(b)                                                             | § 87(2)(b)                  |
| B.SGT Frank Aliffi | Force: Sergeant Frank Aliffi used physical force against § 87(2)(b)                                                      | § 87(2)(b)                  |
| C.SGT Frank Aliffi | Abuse: Sergeant Frank Aliffi entered and searched § 87(2)(b) in the Bronx.                                               | § 87(2)(b)                  |
| D.SGT Frank Aliffi | Abuse: Sergeant Frank Aliffi refused to provide his name and/or shield number to § 87(2)(b)                              | § 87(2)(b)                  |
| E.SGT Frank Aliffi | Discourtesy: Sergeant Frank Aliffi spoke discourteously to § 87(2)(b)                                                    | § 87(2)(b)                  |
| F.SGT Frank Aliffi | Off. Language: Sergeant Frank Aliffi made offensive remarks to § 87(2)(b) based on § 87(2)(b)'s perceived mental health. | § 87(2)(b)                  |
| G.SGT Frank Aliffi | Abuse: Sergeant Frank Aliffi seized § 87(2)(b)'s property.                                                               | § 87(2)(b)                  |
| H.SGT Frank Aliffi | Abuse: Sergeant Frank Aliffi forcibly removed § 87(2)(b) to the Hospital.                                                | § 87(2)(b)                  |

### Case Summary

On August 6, 2017, § 87(2)(b) made this complaint on the CCRB's call processing system.

On August 14, 2017 § 87(2)(b) was contacted by phone, provided a statement and was scheduled for an offsite field interview in the Bronx on August 22, 2017. On August 22, 2017, § 87(2)(b) provided an in-person statement during his offsite interview. On August 29, 2017, § 87(2)(b) contacted the undersigned investigator, saying that he wanted to withdraw his complaint because he felt that until he did, police would not investigate his criminal complaints. § 87(2)(b) said that he felt coerced by the NYPD to come to his decision, and was not withdrawing his complaint out of his own free will. § 87(2)(b) then disconnected the call after being put on hold. Immediately thereafter, § 87(2)(b) was called back, and clarified that he had been told by someone involved in Bronx government or politics to withdraw his complaint, and he believed that police were retaliating against him by intentionally not arresting people he alleged had assaulted him, therefore leaving him and his family vulnerable to future assaults. § 87(2)(b) was told that any allegations of officer retaliation would be made to IAB. § 87(2)(b) said that he understood this and wanted to withdraw his complaint regardless. On August 29, 2017, complaint withdrawal letters were sent to § 87(2)(b) and will be added to the case file upon receipt. On September 5, 2017, § 87(2)(b) left a message for the undersigned investigator saying that he received the withdrawal letters but did not want to sign them because he was unwilling to say that he was not coerced to come to his withdrawal decision. Later that day § 87(2)(b) called again, and confirmed that he still wanted to withdraw his complaint and that he would write his own testimony of what happened in his withdrawal letter and send it back. IM Dane Buchanan listened to § 87(2)(b)'s withdrawal statements, located in IA#52 from 00:00 to 2:32, IA#53 from 0:24 to 3:02, and IA #62 from 00:00 to 1:01 and 2:35 to 4:46, and confirmed § 87(2)(b)'s insistence that he wanted to withdraw his complaints. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

---

Squad: 3

Investigator: \_\_\_\_\_  
Signature Print Date

Squad Leader: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date